

Online Privacy and the Collection of Personal Data:

An Ethical Analysis Through a Kantian Lens

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Abstract- The mass collection of personal information by Online Platforms has become the informal business model of the modern internet, and yet it is not working with the kind of meaningful consent and nearly no type of regulation that takes place in the United States. The thesis statements which are presented in this paper when put into the prism of the deontological theory of Kantian morality are the following: The current-day regime of data collection exposes its users in the same state of degradation that a simple means towards corporate gain can, it fails to meet the conditions of autonomous consent, and it fails to pass the test of universalizability. Once the historical and technical background is set, the paper moves on to the defense of a simple position; not only is it ethically necessary to have an extensive federal privacy law, but it is long overdue, to boot. Among the three most influential contra rends, viz., data collection will lead to improvement of services, markets self-correct, and the fear of the invasion of privacy is over-rated, are then expounded on with more detail and refuted both empirically and morally.

Keywords- online privacy, data mining, Kantian ethics, GDPR, surveillance capitalism, informed consent, data brokers.

I. INTRODUCTION

Whenever we boot up an application or tap on a search engine or scroll through a feed, we find ourselves wandering around with a camera attached to us. What we are clicking on, where we are, who we know, how much time we spend lifting our finger and clicking on a button, what sort of mood does this type of typing rhythm seem to be trying to convey? The mutually understood agreement of the new internet services on the side of surveillance. Or do most of us ever venture into the small print, and when we venture in, we are very seldom really in a situation to make a choice in the matter.

I contend that such a status quo as the highly unregulated gathering of personal data by U.S. corporations is unethical, and that it needs to be reformed both on the company level and on the federal one. To argue out the case, I will use Kantian deontological ethics as a moral compass in arguing the case, as well as in providing a definition of autonomy. These values are not an abstraction but directly concern the fact that it is wrong to treat people as input to a recommendation engine.

The reader should be worried about this since the explanation of why that happens to be the case no longer lies on conjecture. The identity theft and fraud now millions of Americans per year are being affected. It has been Black-box algorithms quietly making decisions of who is offered a loan, apartment or an interview and they did it based on guesswork made from the data that we handed out without any even slightest hint of prior notice. Surveillance, even the light commercial brand of surveillance, is known to paralyze words and freedom of expression. This imbalance between the power of the user and that of the platform has been so commonplace that the intent words consent has become almost ironic to state. We are doing, clandestine great experiment of the liberty of man yet, it is no good.

The paper has sub-sectionalized the discussion into five more sections. Part II includes history and technical. Part III bears the model of Kantian and why the model can be applied and this is the issue. I have applied some empirical data in part IV to reinforce my opinions. Section V addresses the 3 best counterarguments and section VI sums up the discussion

II. BACKGROUND

It only makes sense to examine how we were ushered into the scenario that it is in now. The business of gathering data by the internet is approximately thirty years old and in that brief period it has already made itself into a small-town economist and has been molded to fit the shape of one, of the greatest economies in the entire world.

The state of data collection brought about at the time when the web could only be accessed when subjected to mass usage (mid 1990s) was largely influenced by crude analytics: the quantity of visitors, page impressions, time spent on site. The introduction of social media and search-based advertisements visited in the 2000s ushered in the watershed. The introduction of Facebook in 2004, YouTube in 2005 and Twitter in 2006 turned the regular users into creators of an utterly rich repertoire of behavioral record [3]. This was evidenced by the advertising department of Google who found that the intention and the

focus of a user could be packaged and even marketed in real-time. A system where the user is not the customer, but the raw material, where personal experience is turned into behavioral data that is sold to those who would like to predict and shape what we do next was born: What scholar Shoshana Zuboff has come to think about: surveillance capitalism [3].

It is the technology through which this power is made available that today is multi layered in its form; in other words, is multi layered in sight. The cookies, pixels, (and to an ever-increasing degree) the fingerprinting system of determining a machine by the unique character of its fonts, screen size and software arrangement. Applications that must be accessed on the mobile require access to location, contacts, microphone and calendar. All this data leakage is given to data brokers, with whom most users have no interaction whatever, to combine and sell it together with data brokers to come up with profiles of hundreds of millions of people.

The masses do not blindness on this although of necessity a great deal of the object is covered by blindness. As a 2023 survey by the Pew Research Center has it, three out of five Americans think that little to no control exist over the data that companies are compiling about them, and three out of five Americans expressed their concern about the use of such data [6]. These are not margin sentiments. They make the greater constituent of the population who, in all material senses, have no material (but nonexistent) possibility of choosing out.

The hazards will not occur in the hypothetical plane. The Identity Theft Resource Center idents 2023 as the year with the record number of 3,205 publicly reported data breaches in the United States exposing financial and medical data as well as biometric data in large amounts [7]. No violation or even injury. Much of this has been published by academicians, who state that there is evidence that algorithms are discriminatory when it comes to employment, in the control of credit, in insurance policies and sentencing, most of which are driven by their own inferences, which they have drawn out of nothing but the type of behavior data the industry has been free to extract [9]. It has also been found out that intimate personal attributes, sexual orientation, political views, even signs of mental health can be very accurately forecasted using shared digital records, such as Facebook likes [8].

This legislation has failed to keep abreast of the times. The reason behind it is that the most comprehensive privacy regulation worldwide is the General Data Protection Regulation (GDPR) that will be in effect from 2018. It codifies the ideals of purpose restraint, data reduction, purposeful consent, and a right to erasure. United States on the one hand does not have such a federal determination. Rather it has a patchwork of sectoral laws that include health (HIPAA), finance (GLBA), and children privacy (COPPA) and an ever-growing mass of state legislation that is spearheaded by the California Consumer Privacy Act. This has also created a regulatory environment where default is collection, default is sharing and the onus is put virtually squarely on the individual to assert a right which so far, the law hardly recognizes.

Perhaps it was well to continue a little, in the exercise of this want, what this want of federal protection will manifest itself like? When a user checks into an account in one of the more popular consumer applications these days, he or she usually agrees that it is a hugely broad privacy policy that explicitly reserves the right to share the information with unnamed and unseen "participants" and "affiliates". When making purchases of a physical product in a brick-and-mortar store the same user is also surrounded by a tight network of consumer-protection laws, warranty laws and product-liability laws. There is no historical opportunity in the gap. It is the creation of an elected policy - reinstated in so many administrations since the republican and the democratic administration ruled America - to leave the digital economy to self-regulate. The result of such a decision and the results of which we are now able to observe in the data.

III. ETHICAL FRAMEWORK

A. Kantian Deontological Ethics

Kantian ethics Kantian ethics is a deontological theory: it does not consider the consequences of any action as determining its m Kantian ethics Kantian ethics is a deontological theory: whether the action is performed in regard to particular duties and rational principles, is not considered determinative on whether the action follows moral principles or not [2]. This is opposed to consequentialist theories such as utilitarianism which are only compelled to include the welfare which consequently is part of their judgement of an action. In the example given of Kant, there are simply wrong regardless of the quantity of good that they may provide.

The center of the moral theory of Kant is the Categorical Imperative, which is an unconditional rule, which must be followed by any sensible agent. Of its formulations there are two which are the most important to this paper. The latter is the Formula of Universal Law: Do nothing but what is in accordance with a maxim under which you could become universal law. Second is the Formula of Humanity: Act so that you treat not merely the end but the means as well in Human being. Human beings do not constitute raw materials. Their value is not the one that they can be ready to produce.

Together with this is the version of the independent by Kant. Becoming a moral agent is becoming a rational creature that has power to control his/her own life. These are not associated with the sense of moral significance and the autonomy of the

choices against being coerced, deceived or subjected to hopeless asymmetry. To be counted as consent, it must be informed, needs to be real and should not be forced.

B. Why This Framework Fits the Problem

Kantian ethics is quite appropriate to tackle the issue of online data collection due to three reasons. First, the nature of the question itself is a question on how to treat human beings. The business model of the consumers' internet that prevails is the use of people as an instrument - a source of data that is extractable, refinable and can even be sold to others. The textbook meaning of treating a person as a means is what this is.

Second, the Kantian ethics has provided a moderate understanding of assent. Thousand words and term of service privacy policies that were invented and implemented to be ignored and dark pattern interfaces under-designed to be ignored are not the kinds of consent that Kant would regard as acceptable. The implementation of imprudent, coerced or forced assent to a situation where noncompliance is equated to exclusion in the regular social life can be considered as no consent in the case considered by Kantian philosophy.

Third, universalizability test shows the lack of coherence of the current models. The trust that makes online life possible would be missing when every person and everything a business puts together to start a business goes to remind everyone, by selling all the personal information they could accumulate to everyone else, that it is in effectivities that cause everyone to start paddling towards the shore. The users would not only revert but even the very sites that are reliant on the data collection would be done away with. Maxim, which destroyed the premises of its own success, is according to the standard of his own self, irrational and immoral.

Lastly, consequential trade where any harms to this privacy is paid by few of the free services or even the convenient customization of the products contradicts deontology. In Kant, the rights cannot be traded in to accrue benefits. As much as it might be represented by a valuable product, it is still wrong.

C. How the Framework Views the Status Quo

Most of the existing data collection practice is lagging using this perspective. This is not so serious: the privacy policies are written in legalese and hidden behind buttons, and they are provided as the cost of accessing the service, which now became virtually unimaginable without. This issue is even complicated by data brokerage; users do not know who will be holding their data and who has already purchased their data and what was the purpose of its purchase. The use of algorithms-based profiling assumes conclusively about race, sexuality, health, and political beliefs which any individual does not explicitly bring out and put the presuppositions in place to allocate opportunities. All these practices take into consideration the individual as a locus of information and not terminal in herself/ himself.

A data practice that is ethical would resemble a Kantian framework, as well. It would mean that there should be transparency, precision and intelligibility of disclosure as of what is being collected, the purpose thereof; affirmative, specific and informed consent; minimization of information gathered (collection of no more than is necessary in a given purpose); meaningful restrictions to its further use and disclosure; strong security obligations including breach response; strong user rights to access, and to correct and empty their data. All this is not exotic. It is developed using the same principles that have already been operationalized in Europe by the GDPR.

It is not fruitless to make the difference between this Kantian onslaught, and the pure sentimentalism of defending privacy. The reason is not that privacy is pleasant and surveillance is not, but that it is simply that an entity generates certain ideas that help us to fragment, alter them or to re-model them into different shapes. It is contended that the practices under consideration do not pass an overt ethical test. They do not conform to the Formula of humanity on the grounds that they consider people as repositories of information the interests of which are secondary to commercial interests. They do not pass the test of autonomy since the consent which they are based upon is structurally defective. They fail to pass the universalizability test since the world where they were all behaving in this way would not have been a world in which the trust upon which the system had been operated remained. Nothing of the kind has in common with objections to aesthetic values. They are created as a part of the tendency of the moral agency itself and perform even when any user is violated on a particular day.

IV. PERSONAL POSITION

A. My Position

The existing Unethical Unsympathetic is the S policy to gather online information. The informational self-determination is no luxury and choice of the consumer. Freedom in an online society is a precondition, and it must be put under the safeguard of systematic federal legislation. United States needs a privacy law with wide coverage, actual enforcement and penalties that are in the budget of businesses with annual incomes in the hundreds of billions range.

B. Arguments Supporting This View

The initial sources of evidence are the people themselves. The 2023 study commissioned by the Pew Research Center found that 81 percentage of Americans feel they have no power to counter the collection of their data by corporations, and 79 percent are specifically concerned about why their data is being collected and what is happening with their data (as cited in [6])? Another outcome is also worthy of mentioning: most of the respondents affirmed to have not read what companies do with their information, even though they had attempted to read privacy policies. It is not paranoia. It remains a neighborhood, which has developed, quite justifiably, the opinion that the system is not transparent and biased against it. In a democratic government, a steady majority of opinion fear that some fundamental civil interest is in his own person, a sufficient imperative to action.

The second evidence is the history of injury written. They found out that in one year alone they recorded 3,205 publicly disclosed breaches, the highest number in record history [7]. Further than that number comes the hundreds of millions of exposure documents which are floating in some place, indeed it no longer should be. This damage is also not distributed evenly. The older Americans, low-income families, and less digitally literate people disproportionately bear the burden of the effects.

The third evidence would be the research study algorithmic discrimination. A 2013 study published in the Proceedings of the National Academy of Sciences proved that one could predict highly personal characteristics that are sensitive like sexual orientation, ethnicity, religious and political views, intelligence, happiness and usage of addictive substances [8]. According to the groundbreaking study by Joy Buolamwini and Timnit Gebru entitled Gender Shades, commercial facial-recognition systems falsely identified darker-skinned women in percentage of occurrence more than thirty times more frequently than more light-skinned men [9]. These types of systems becoming involved in processes of hiring, lending, policing or housing the processes, compound the harms. Based on inferences that they have never agreed to and, on most occasions, cannot disagree with, there is the denial of people who they cannot see, with opportunities.

Comparative is the fourth source of evidence. As of 2018, the European Union has been operating under the GDPR and the predicted scenario in the case of an economic disaster has not happened yet. Google, Spotify, Netflix, and Amazon will also still be providing their advanced personalized services to European customers. Startups bringing money to Europe are still fundraising, and supply products via delivery. The GDPR has not changed the terms of the bargain: now, companies should be more considerate regarding what they collect, be more truthful about the reasons, and more accountable when failing to do so [4], [5]. The premise that a workable privacy law cannot be one that has a thriving digital economy has not fared well with getting in touch with the facts.

The fifth and seemingly most neglected group of evidence is one of children brought up within this system. Adult-oriented applications and platforms also gather data about minors, and often via devices they are provided with by their schools or their parents who often cannot realistically scroll all the content involved in the policies. The long-term repercussions of a generation of people growing up with a lasting, granular record of their behavior, a record which can be utilized to remedy their insurance youngster remuneration, evaluate their job applications and accelerate the political messages they observe are not yet properly understood. What is already apparent is that those individuals who are most likely to be influenced by the current practice within the group of people did not have the best opportunities of agreeing to the current practice. Any moral system which regards autonomy seriously must regard that asymmetry seriously.

C. Why the Reader Should Be Persuaded

The argument that lends more weight to the protection of privacy is sometimes framed as a trade-off between privacy (running on one flank) and innovation and convenience (running on the other flank). Such a framing is mistaken, as well. Whatever is afforded by the present system; either by acquiescence in comprehensive data collection or by being shut out of much of the modern world, is not an alternative, in any substantive sense, to another. The prospect of quitting Google, Facebook, email or even a smartphone is not an option that is viable given the fact that most people are required to undertake employment, acquisition of learning among numerous others or even the simplest forms of commerce. Where the other is to replace the consent is exiled is the consent that is called to have lost its moral content.

Privacy-affirmative innovation is, moreover, a real category. Differential privacy enables researchers to tease out helpful statistical patterns in data without revealing individuals. Federated learning realizes the possible capacity to learn machine-learning models on several devices, without amalgamating unrefined data. On-Device processing refers to the practice of keeping sensitive computations on-site. The protection of content of the intermediaries is guaranteed by end-to-end encryption. These are not hypothetical: they are already going into practice by such companies as Apple and Google on products. This is the reason that they are not the default and not in technical infeasibility. That is, in the sense that such a dominant business model makes a payment to collect more and not less.

And a lengthy social argument. A society in which all the activities on the internet are archived, researched and likely to be used to the detriment of the doer is not a culture that people converse, compile and probably utilize to the disadvantage of the perpetrator. The behavioral response, whereby people will self-censor, evade the search process, refuse to answer on sensitive topics on occasion when they are aware that they are being observed even with commercial actors has been

documented as empirical evidence of the effects of chilling. Freedom (in a larger application) must be linked with the ability to think and act without the audience. The cream of the cake of other rights is privacy which is one of the ingredients.

Suppose what would be found in concrete material, the alienation of this material. The ability to browse the Internet, read forums and explore their identity without that record becoming an inseparable part of them should it become a part of their experience that would make them question their sexuality. The thinking employee who wishes to form a union must have the capability to work out the labor law without any fear of the research being found, and being a part of the future hiring decision, two employment periods down the road. Any patient wishing to research the symptoms cannot have this history sold to data brokers who in turn sell it to the insurers. No such cases are hypothetical extrapolation, and neither provides an instance of actual or possible use of the data, which is now legal and most unknown to the individuals to whom they were applied. Even the fact that any of these things can be does not balance out the destruction of it. It is, that sense of possibility will get its own way on the conduct of being oneself the unhappy lottery of freedom.

The bottom line is that it is neither privacy vs. innovation. It encloses an internet constructed out of an internalization of the hive of human experience and an internalization of an internet of respect. We have not only technical instruments, but legal models which work in other democracies, and we have in our case an occasion when this needs to be remedied. The lack lies with political will.

V. REBUTTAL

Three arguments that would be used to counter argue would be the fact that data collection would result in more productive services, that the market would correct bad actors and that privacy issues are overblown. They are both plausible to the extent that there is a need to give answers. None can stand a close inspection.

A. *“Data Collection Improves Services”*

The first fact turned out to be a mistake that companies are gathering data since it is needed by the company so that it can offer some useful services. Recommender engines, results of search engines, travel plans, fraud detectors, personalization, all of which will require a small doll of information about the user. Curtail information, curtail services. The kernel of truth in this instance is true. Not everything is that all collections are service relevant and that there is an outright ban neither viable nor desirable.

This argument is, however, unsuccessful as it cannot be justified with abuse. The relevant question, as opposed to whether someone needs or does not need any data, is whether the amount and the size of the collection is reasonable in the light of the services that it provides. It is not as experience in Europe demonstrates. Under the GDPR, businesses have been even more active in providing and delivering quality customized services with a much more difficult restriction on what must be gathered, stored and exchanged with third parties. Another research that was conducted by Goldfarb and Tucker on the privacy regulation and online advertising had also indicated that the economic impacts were that much more assessed than the outcries in the industry would have projected [5]. It is not the real motivation of expansive collection to service quality. Promotion money, down streaming the resale to data brokers - uses which have at best a far-fetched connection with how the product is experienced by the user.

An upright stance is easy going, data must be collected in a commensurate manner to the purpose of the data collection, the purpose must be in plain language and consent must be specific. The one such fair use is: We save your search terms to get the maximum search results. The objection that we compile all that you do across all the individual sites that we are placing a pixel on that we infer dozens of characteristics about you and sell access to such a profile.

The collection/benefit imbalance will also be called. In licensing one cookie banner, a user does not license the other user, who is just so coincidentally positioned, at the other end of its deal, one narrowly related piece of information; it grants an open-ended trust to one of the most versatile-applicable pieces of information in the present-day business. The user in turn gets a service that in other ways would be given regardless of the highly reduced data flow which nevertheless is being delivered. This fair trade, however, can only be interpreted in two ways or either has a very generous interpretation of the contract or has a very narrow interpretation of what the user is relinquishing. Both readings are dismissed on a Kantian model, and its requirement of real informed consent and proportionality.

B. *“The Market Will Discipline Bad Actors”*

The second opinion is that the words should be prescribed by the consumers, and not by the regulators. Where privacy is an issue of concern to the users, it will be the providers that offer privacy that will be preferred and good behavior rewarded in the competition. The government does not have to enter the stage, and most probably, it will not play its part in the situation.

This perspective presupposes that there are already existing markets but that is not the case. Knowledgeable consumers, actual decisions and low cost of exit are all conditions of the functional markets. All those are not available in the personal data market. The consumers do not read (and certainly do not read) the privacy policies that they are required to encounter on a

yearly basis in hundreds of hours; a celebrated estimate is that the time spent reading all the privacy policies that a typical user must encounter on a yearly basis is in the hundreds of hours. Business organizations boast about their approach of doing what they are doing in a manner that is satisfactory to lawyers and leaves the users unaware of it. The high switch costs are entangled with platforms that keep increasing photos, contacts, calendar, friends and history of an individual are an interwoven network of large switch costs.

Moreover, the markets in question could not be deemed competitive, in the respective meaning of the word. In most of the nations where Google reigns above a hundred percent on the overall search. The social network domination along with the domination of the mobile operating systems market by Apple and Google and domination of online retail by Amazon are proven. The myth of market discipline about privacy is in a market where one or two firms with strong network effects, are controlling the market, and have the massive advantage of their data. The amount of data cannot possibly compete with the competitors in the market who have been collecting data over the last 20 years, and the consumer cannot possibly vote with its feet when there is no other alternative in this market that can be possibly deemed as comparable. We do not just slumber on market discipline just to inflict environmental damage, financial fraud or even occupational safety. We legislate. This is also equivalent reasoning.

The self-reinforcing dynamic that one can call also exists. The more data is available to a company, the better the company models are; the better the company models are the more users each company attracts. Neither does it reflect a market failure which can be corrected on the margins. It is informational based competition structural feature and makes the response to it of simply searching out another provider, sound hollow. A consumer who had earnestly intended to move his business elsewhere would in most categories find the alternative to offer products that are either subsidiaries of the same incumbents or smaller businesses, the service of which is rather inferior since it was never an opportunity to substantially compete on equal terms. By causing it to be a problem (which will be resolved in the market) then one has been wrong and the side effect of the solution.

C. "Privacy Risks Are Overblown"

Three of these refutations are that the evils of the method of collecting data are more than that. Most of the users are not victims of identity stealing. Majority of them do not notice any tangible impact. In this sense, privacy advocates are foaming at the mouth concerning edge cases.

This is erroneous in its analysis of data and compiling the damage. Cases involving concrete harm created and where the damage to the case occurred at the case's edges are called edging cases: In 2023 alone, there were 3,205 reported breaches involving concrete harm being created [7]. This does not imply that there is a minor latent and skewed risk: it just means that the risk is latent and skewed. Framing An identity theft with a breach in 2020 can be established years later, generally in the form (hallucinated loan, hold on a tax refund, a mysterious collection notice) of which the victim would never be able to determine a place of beginning of exposure.

More important, the argument does not take into consideration systemic and informational injuries. Because most of the time the mistake he/she has made was the fact that he/she was not given an opportunity to work in the place due to an algorithm, which has been developed based on the biased data, passing. Bends all the decisions in a way that cannot be perceived by the decision maker as is done in political and business advertisements. The problems of large and fragile data concentration are a time-tested danger in any time history: the very storage of such data is a treasure trove to be accessed by the totalitarian regimes, the violent use of state power and the criminal gangs. Including a hitherto standard commercial collection within the scope of a surveillance system based on scale, however, has been described in both the Electronic Frontier Foundation and other civil-liberties groups [10].

The appropriate standard is the precaution that is proportionate to the stakes, the right standard. Financial security, equal opportunity, freedom of association and freedom of speech are some of the stakes in this case. The principle, by means of which a sufficiently big number of people are clearly harmed is not a serious reaction to the risks of such magnitude.

VI. CONCLUSION

It is not implicit but explicit opposition of the current data-collection regime (supported by Kantian) by the current data-collection regime. Humans are provided as vehicles. Any slight measure of agreement they give anywhere is on such conditions that it is deprived not only of any moral content but equally of any normative import. These practices under consideration cannot pass a universalizability test, they are releasing hard concrete harms, which are financial, discriminatory and political in nature and difficult to deny. All the old excuses of the system are doing better at services it renders, market redressing it, risks it exaggerating it all, and fails to do a test of examination.

This is not an artificial description which is alien. It is an overarching federal law of principle on privacy through broadhead federal practice, which is opt-in rather than opt-out, grievous data minimization, plain language transparency, actual right of access and deletion, substantial penalties and express limitations on discriminations based on inferred actions. With this law,

the digital economy would not be able to achieve its end. It would change its terms and start to be above user in a product scenario and start to treat user as he/she treats a person.

What more ubiquitous question should we become with these technologies what type of society would we like to have created by these technologies? Even today we can permit even the secrets of the vernacular life so secret we may on occasion call it our branch secret using what we can privately call our branch language. Or we may be pleased that privacy is not a luxury good, exchangeable, in the free email service, faster shipping service, etc. Technological means exist. The legal templates are availed. Public support exists. I suppose moral case that is. The rest will be optional.

When Kant honored the other one man, he had no option but to honor such an entity and not to believe that it was a mere end and could be used by some other human being. The internet might not come out after tests, at a planetary level. To pre-equip or rehab it will never render us forget about the actual benefits of digital life - connection, knowledge, opportunity, expression. It mobilizes us to insist that the provision of such benefits must be done in a way that will give serious consideration to the fact that such benefits are meant to be given to human beings. It is no distant sigh; it is no distant cry. Easily of all, even a civilized society will never be able to come up with.

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